
CODE OF DELEGATED/SUBORDINATE LEGISLATION OF BANGLADESH
VOLUME III: PERIOD 1947-1970

PAKISTAN PERIOD — EAST PAKISTAN / EAST BENGAL

Package SD-1

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PREFACE

Volume III covers the Pakistan period (1947-1970), during which East Pakistan

(present-day Bangladesh) inherited and adapted the entire corpus of British Indian law while simultaneously developing new subordinate legislation to address the needs of the new nation.

This period is characterized by three distinct legal phases:

- (a) Post-independence adaptation and legal continuity (1947-1958)
- (b) First Martial Law and Ayub Khan era (1958-1969)
- (c) Second Martial Law and pre-independence period (1969-1970)

Many subordinate legislations from this era remain directly in force in Bangladesh today, making this the most practically significant volume of the SD-1 Code. The East Bengal State Acquisition and Tenancy Rules, Muslim Family Laws Rules, Government Servants Conduct Rules, and criminal/civil procedure rules adapted during this period continue to form the backbone of Bangladesh's legal administration.

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CHAPTER 1: CONSTITUTIONAL, ADMINISTRATIVE, AND ADAPTATION ORDERS

OVERVIEW:

Upon independence in 1947, Pakistan inherited the entire body of British Indian law through a series of adaptation orders. These orders modified

existing laws to replace references to British India with Pakistan-specific terminology and adapted the administrative structure accordingly. This chapter covers the foundational adaptation instruments and key administrative rules that shaped governance in East Pakistan.

1.1 PAKISTAN (PROVISIONAL CONSTITUTION) ORDER, 1947

Date : 15 August 1947
Authority : Governor-General of Pakistan
Parent Act : Indian Independence Act, 1947 (Section 8)
Type : Order
Gazette Reference : Gazette of Pakistan Extraordinary, 1947

PROVISIONS:

- Adoption of Government of India Act, 1935 as the provisional constitution of Pakistan (with adaptations)
- Establishment of federal and provincial government structure
- Division of legislative powers between center and provinces
- Continuation of existing courts and judicial system
- Fundamental rights (as per 1935 Act provisions)

STATUS: Historical — Superseded by Constitution of 1956

SIGNIFICANCE:

This order ensured legal continuity at the moment of independence, preventing a legal vacuum. The adapted Government of India Act, 1935 served as Pakistan's constitution until 1956.

1.2 GOVERNMENT OF INDIA (ADAPTATION OF EXISTING LAWS) ORDER, 1947

Date : 1947
Authority : Governor-General of Pakistan
Parent Act : Indian Independence Act, 1947
Type : Order

PROVISIONS:

- Systematic adaptation of all existing British Indian laws:
 - * "British India" replaced with "Pakistan"
 - * "Governor-General of India" replaced with "Governor-General of Pakistan"
 - * "Indian Legislature" replaced with "Pakistan Legislature"
 - * References to provinces adapted for Pakistan's provinces
- Schedule of specific adaptations for individual Acts
- Provisions for future adaptation orders

STATUS: Historical — Purpose fulfilled

SIGNIFICANCE: Ensured seamless legal continuity

1.3 EAST BENGAL (ADAPTATION) ORDERS, 1948-1950

Date : 1948-1950 (series)
Authority : Governor of East Bengal
Parent Act : Government of India Act, 1935 (as adapted)
Type : Orders

PROVISIONS:

- Provincial-level adaptations of inherited laws
- "Bengal" or "Province of Bengal" adapted to "East Bengal"
- References to Calcutta High Court adapted for Dhaka High Court

- Administrative terminology updates

STATUS: Historical

1.4 GOVERNMENT SERVANTS (CONDUCT) RULES, 1964

Date : 1964
Authority : Government of Pakistan
Parent Act : Government Servants (Conduct) Act
Type : Rules
Gazette Reference : Gazette of Pakistan, 1964

PROVISIONS:

- Rule 1 : Short title and commencement
- Rule 2 : Definitions
- Rule 3 : Gifts — restriction on accepting gifts from persons
having official dealings
- Rule 4 : Unauthorized communication of official information
- Rule 5 : Participation in politics — prohibition on political
activity by government servants
- Rule 6 : Connection with press and media
- Rule 7 : Evidence before committees
- Rule 8 : Subscriptions — restriction on seeking collections
- Rule 9 : Business, trade, or employment outside official duties
- Rule 10 : Private employment after retirement (cooling-off period)
- Rule 11 : Acquisition and disposal of property — reporting
requirements for property transactions
- Rule 12 : Insolvency and habitual indebtedness
- Rule 13 : Movable, immovable, and valuable property declarations
- Rule 14 : Vindication of acts in discharge of official duties
- Rule 15 : Misconduct — acts constituting misconduct
- Rule 16 : Nepotism and favoritism
- Rule 17 : Canvassing support for promotion

STATUS: IN FORCE IN BANGLADESH (with amendments)

SIGNIFICANCE FOR BANGLADESH:

These rules continue to govern the conduct of all government servants in Bangladesh. They are frequently cited in disciplinary proceedings and anti-corruption cases. Key provisions regarding property declaration, prohibition of business, and political neutrality remain actively enforced.

1.5 GOVERNMENT SERVANTS (EFFICIENCY AND DISCIPLINE) RULES, 1960

Date : 1960
Authority : Government of Pakistan
Type : Rules

PROVISIONS:

- Grounds for disciplinary action
- Minor penalties (censure, withholding increment, stoppage of promotion, recovery from pay)
- Major penalties (reduction in rank, compulsory retirement, removal from service, dismissal)
- Inquiry procedure
- Inquiry officer appointment and powers
- Opportunity of defense (show cause notice)

- Appeal procedure and appellate authorities
- Review of disciplinary orders

STATUS: IN FORCE IN BANGLADESH (with amendments)

1.6 EAST PAKISTAN GOVERNMENT SERVANTS (DISCIPLINE AND APPEAL) RULES, 1961

Date : 1961
Authority : Governor of East Pakistan
Type : Rules

PROVISIONS:

- Provincial disciplinary framework complementing central rules
- Procedure for provincial disciplinary proceedings
- Provincial appellate authorities
- Time limits for disciplinary proceedings

STATUS: IN FORCE (adapted for Bangladesh)

1.7 CIVIL SERVICE RULES (PAKISTAN / EAST PAKISTAN)

Date : 1947 (adapted from British Indian CSR)
Authority : Government of Pakistan / East Pakistan
Type : Rules

PROVISIONS:

Volume I — General Rules

- Classification of government servants
- Pay scales and allowances
- Increments and efficiency bars
- General conditions of service

Volume II — Leave Rules

- Types of leave (casual, earned, half-pay, extraordinary)
- Leave accumulation and encashment
- Maternity/paternity leave
- Study leave
- Leave salary computation

Volume III — Pension Rules

- Pension eligibility
- Types of pension (superannuation, retiring, invalid, family)
- Gratuity and death-cum-retirement benefits
- Commutation of pension
- Pension computation formula

Volume IV — Traveling Allowance Rules

- Classification of journeys (tour, transfer, training)
- Entitlements by grade
- Daily allowance rates
- Transportation claims

STATUS: PARTIALLY IN FORCE

- Many provisions continue to apply; others superseded by Bangladesh-specific service rules
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CHAPTER 2: LAND, REVENUE, AND TENANCY

OVERVIEW:

The most transformative legislation of the Pakistan period in the field of land law was the East Bengal State Acquisition and Tenancy Act, 1950, which

abolished the zamindari system that had been in place since 1793. The rules made under this Act remain the cornerstone of land administration in Bangladesh today.

2.1 EAST BENGAL STATE ACQUISITION AND TENANCY RULES, 1951

Parent Act : East Bengal State Acquisition and Tenancy Act,
1950 (East Bengal Act XXVIII of 1951)

Date : 1951 (amended periodically)

Authority : Government of East Bengal

Type : Rules

Gazette Reference : East Bengal Gazette, 1951

PROVISIONS:

Part I — Preliminary

Rule 1 : Short title

Rule 2 : Definitions

Rule 3 : Application and scope

Part II — Acquisition of Rent-Receiving Interests

Rule 4 : Procedure for notification of acquisition

Rule 5 : Preparation of Compensation Assessment Roll

Rule 6 : Determination of compensation

Rule 7 : Payment of compensation

Rule 8 : Objections and appeals regarding compensation

Rule 9 : Transfer of management from ex-landlords to government

Part III — Tenancy and Land Holding

Rule 10 : Classification of tenants (raiats)

Rule 11 : Occupancy rights and non-occupancy rights

Rule 12 : Ceiling on agricultural land holdings

Rule 13 : Excess land surrender and redistribution

Rule 14 : Transfer of agricultural land — restrictions and
permissions

Rule 15 : Mutation procedure upon transfer

Rule 16 : Subdivision and consolidation of holdings

Rule 17 : Joint holdings and partition

Part IV — Rent Assessment and Collection

Rule 18 : Rent assessment procedure

Rule 19 : Rent rolls and demand registers

Rule 20 : Rent collection procedure

Rule 21 : Receipt issuance

Rule 22 : Arrear rent recovery

Rule 23 : Certificate case procedure for rent arrears

Part V — Survey and Record of Rights

Rule 24 : Survey operations procedure

Rule 25 : Preparation and maintenance of Record of Rights (RoR)

Rule 26 : Correction of records

Rule 27 : Khatian (record of rights) preparation

Rule 28 : Map preparation and maintenance

Part VI — Miscellaneous

Rule 29 : Appeal procedure

Rule 30 : Forms and schedules

Rule 31 : Penalties for non-compliance

STATUS: IN FORCE IN BANGLADESH

SIGNIFICANCE FOR BANGLADESH:

These are among the most important and frequently applied subordinate legislations in Bangladesh. They govern all aspects of land administration including:

- Mutation (ownership transfer recording)
- Survey and settlement operations
- Rent/land revenue collection
- Land ceiling enforcement
- Agricultural land transfer restrictions

CROSS-REFERENCES:

- State Acquisition and Tenancy Act, 1950 (parent Act)
- Survey Act / Survey and Settlement Rules
- Land Management Manual
- Non-Agricultural Tenancy Act, 1949

2.2 NON-AGRICULTURAL TENANCY RULES, 1949

Parent Act : Non-Agricultural Tenancy Act, 1949
Date : 1949
Authority : Government of East Bengal
Type : Rules

PROVISIONS:

- Rights of non-agricultural tenants (urban and commercial land)
- Rent assessment for non-agricultural tenancies
- Transfer and succession of non-agricultural tenancies
- Eviction procedure and grounds
- Dispute resolution

STATUS: IN FORCE IN BANGLADESH

2.3 EAST PAKISTAN SURVEY AND SETTLEMENT RULES

Parent Act : Survey Act / SAT Act, 1950
Date : 1955 (revised)
Authority : Government of East Pakistan
Type : Rules

PROVISIONS:

- Survey team composition and qualification
- Survey methodology (plane table, chain survey, etc.)
- Cadastral map preparation standards
- Record of rights (khatian) preparation procedure
- Public verification (attestation) process
- Objection and correction procedure
- Final publication of records

STATUS: IN FORCE IN BANGLADESH

CHAPTER 3: FAMILY AND PERSONAL LAW

3.1 MUSLIM FAMILY LAWS RULES, 1961

Parent Act : Muslim Family Laws Ordinance, 1961
(Ordinance VIII of 1961)
Date : 1961
Authority : Government of Pakistan

Type : Rules

Gazette Reference : Gazette of Pakistan, 1961

PROVISIONS:

Chapter I — Marriage Registration

- Rule 1 : Appointment of Nikah Registrars (Marriage Registrars)
- Rule 2 : Qualifications for appointment as Nikah Registrar
- Rule 3 : Jurisdiction of Nikah Registrars
- Rule 4 : Marriage registration procedure
- Rule 5 : Nikahnama (marriage contract) — prescribed form
- Rule 6 : Contents of Nikahnama
- Rule 7 : Dower (mehr) — recording and acknowledgment
- Rule 8 : Fee schedule for marriage registration
- Rule 9 : Register maintenance and returns

Chapter II — Polygamy

- Rule 10 : Application for permission to contract another marriage
- Rule 11 : Arbitration Council procedure for polygamy applications
- Rule 12 : Conditions for granting permission
- Rule 13 : Existing wives' consent/objection procedure
- Rule 14 : Penalties for violation

Chapter III — Talaq (Divorce)

- Rule 15 : Notice of talaq — prescribed form and procedure
- Rule 16 : Service of notice on Chairman (Union Council)
- Rule 17 : Copy of notice to wife
- Rule 18 : 90-day waiting period
- Rule 19 : Arbitration Council formation for reconciliation
- Rule 20 : Arbitration Council procedure
- Rule 21 : Effect of non-reconciliation — divorce becomes effective
- Rule 22 : Record of divorce

Chapter IV — Maintenance

- Rule 23 : Application for maintenance by wife
- Rule 24 : Arbitration Council procedure for maintenance
- Rule 25 : Maintenance order and enforcement
- Rule 26 : Maintenance during iddat period

Chapter V — Succession

- Rule 27 : Inheritance rights of grandchildren
(orphaned grandchildren's share)
- Rule 28 : Procedure for claiming inheritance

Chapter VI — General

- Rule 29 : Forms prescribed under the Rules
- Rule 30 : Fee schedule
- Rule 31 : Penalties for non-compliance

STATUS: IN FORCE IN BANGLADESH

SIGNIFICANCE FOR BANGLADESH:

These rules are critically important — they govern:

- All Muslim marriages in Bangladesh (registration is mandatory)
- Divorce procedure (talaq notice and 90-day reconciliation period)
- Polygamy restrictions (prior permission required)
- Maintenance rights of wives
- Succession of orphaned grandchildren

These rules are applied daily by Union Council Chairmen, Nikah

CHAPTER 9: MARTIAL LAW INSTRUMENTS

OVERVIEW:

Pakistan experienced two martial law periods during 1947-1970, each generating significant subordinate legislation:

- (a) First Martial Law: 7 October 1958 — 8 June 1962 (Ayub Khan)
- (b) Second Martial Law: 25 March 1969 — 20 December 1971 (Yahya Khan)

Martial law instruments took the form of Martial Law Orders (MLOs), Martial Law Regulations (MLRs), and Presidential Orders. While most have been repealed, some provisions were absorbed into subsequent legislation.

9.1 MARTIAL LAW (GENERAL) ORDERS, 1958

Date : October 1958 onwards
Authority : Chief Martial Law Administrator (Gen. Ayub Khan)
Type : Orders

KEY ORDERS:

- MLO No. 1 : Proclamation of Martial Law, abrogation of Constitution of 1956
- MLO No. 2 : Continuation of existing laws and courts
- MLO No. 3 : Powers of Martial Law Administrators
- MLO No. 5 : Restriction on political activities
- MLO No. 9 : Screening of government servants
- MLO No. 12 : Press censorship
- MLO No. 15 : Anti-hoarding and anti-profiteering
- MLO No. 18 : Land reform measures

STATUS: Historical — Martial law lifted 1962

9.2 ELECTIVE BODIES (DISQUALIFICATION) ORDER, 1959 (EBDO)

Date : 1959
Authority : President of Pakistan
Type : Order

PROVISIONS:

- Disqualification of specified politicians from public office
- Procedure for disqualification
- Duration of disqualification
- Appeal procedure (limited)

STATUS: Repealed

9.3 LEGAL FRAMEWORK ORDER, 1970

Date : 30 March 1970
Authority : President of Pakistan (Gen. Yahya Khan)
Type : Order

PROVISIONS:

- Framework for transfer of power to elected representatives
- General elections to be held on basis of adult franchise
- Seat allocation between East and West Pakistan (167 vs 144 based on population)
- Time limit for constitution-making (120 days)
- Principles of federalism, Islamic provisions, provincial autonomy

- Presidential approval required for constitution

STATUS: Historical

SIGNIFICANCE:

This order led to the landmark 1970 general elections in which the Awami League won 167 out of 169 East Pakistan seats. The subsequent refusal to transfer power led to the Liberation War and the birth of Bangladesh on 16 December 1971.

APPENDIX D: SUBORDINATE LEGISLATIONS STILL IN FORCE IN BANGLADESH

The following subordinate legislations from the Pakistan period (1947-1970) remain in force in Bangladesh as of the date of this Code:

S/N	Title	Ref. No.	Chapter
1	Government Servants (Conduct) Rules, 1964	SD-1/E3/0005	1
2	Govt Servants (Efficiency & Disc.) Rules	SD-1/E3/0006	1
3	EP Govt Servants (Disc. & Appeal) Rules	SD-1/E3/0007	1
4	Civil Service Rules (adapted)	SD-1/E3/0008	1
5	EB State Acquisition & Tenancy Rules, 1951	SD-1/E3/0013	2
6	Non-Agricultural Tenancy Rules, 1949	SD-1/E3/0015	2
7	EP Survey and Settlement Rules	SD-1/E3/0017	2
8	EP Public Demands Recovery Rules	SD-1/E3/0018	2
9	Muslim Family Laws Rules, 1961	SD-1/E3/0020	3
10	Muslim Family Laws (Registration) Rules	SD-1/E3/0021	3
11	Child Marriage Restraint Rules	SD-1/E3/0022	3
12	Guardians and Wards Rules	SD-1/E3/0024	3
13	EP Agricultural Income Tax Rules	SD-1/E3/0050	8
14	EP Criminal Rules and Orders	SD-1/E3/0061	10
15	EP Police Rules	SD-1/E3/0062	10
16	EP Jail Code / Prison Rules	SD-1/E3/0065	10
17	EP Public Health Rules	SD-1/E3/0069	11
18	EP Registration Rules	SD-1/E3/0079	14

NOTE: "In force" includes instruments that have been adapted/amended for Bangladesh but whose core framework originates from this period.

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END OF VOLUME III — CODE OF SUBORDINATE LEGISLATION
